

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Diana Murray	Team: Team # 2	CCRB Case #: 201402170	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 02/26/2014 2:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/26/2015	Precinct: 113		
Date/Time CV Reported Fri, 02/28/2014 12:05 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 03/06/2014 11:51 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Derek Webber	21329	949786	113 PCT
2. POM Matthew Lewis	25652	941054	113 PCT
3. DTS Thomas Reo	5817	946153	113 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Ryan Dunn	16781	944526	113 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Matthew Lewis	Discourtesy: PO Matthew Lewis spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Derek Webber	Abuse: PO Derek Webber searched § 87(2)(b)	B . Unsubstantiated
C . POM Derek Webber	Abuse: PO Derek Webber frisked § 87(2)(b)	C . Substantiated
D . POM Derek Webber	Abuse: PO Derek Webber searched the car in which § 87(2)(b) was an occupant.	D . Substantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On February 28, 2014, § 87(2)(b) filed this complaint with the Internal Affairs Bureau (IAB) via phone, generating IAB log 14-7365 (Enc. 11a – 11b). This case was received at the CCRB on March 6, 2014 (Enc. 12a – 12b).

On February 26, 2014, at approximately 2:30 p.m., § 87(2)(b) was driving home when he was stopped by officers in front of § 87(2)(b), in Queens. The following allegations resulted:

- **Allegation A: Abuse of Authority: PO Matthew Lewis spoke discourteously to** § 87(2)(b)
- **Allegation B: Abuse of Authority: PO Derek Webber searched** § 87(2)(b)
§ 87(2)(g) It is therefore recommended that **Allegations A and B** be closed as **unsubstantiated**.
- **Allegation C: Abuse of Authority: PO Derek Webber frisked** § 87(2)(b)
- **Allegation D: Abuse of Authority: PO Derek Webber searched the car in which** § 87(2)(b) **was an occupant.**
§ 87(2)(g) It is therefore recommended that **Allegations C and D** be closed as **substantiated**.
- § 87(4-b) § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g)

This case was ineligible for mediation.

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) old at the time of this incident. He is a § 87(2)(b) black man with black hair and brown eyes.
- § 87(2)(b)

Evidentiary Photos

§ 87(2)(b) provided evidentiary photos of his pinky ring, the exterior of his vehicle and seven photos of the vehicle's interior including the front seats, center console, back seats and trunk, which depict personal items, papers and garbage scattered about (Enc. 14h – 14k). The center console is pictured as having a liftable lid that conceals the items inside (Enc. 14j).

CCRB Statement

§ 87(2)(b) filed this complaint on February 28, 2014, provided a phone statement to the CCRB on March 20, 2014 (Enc. 13a), and was interviewed at the CCRB on March 25, 2014 (Enc. 14a – 14m). On April 11, 2014, § 87(2)(b) filed a Notice of Claim on behalf of himself, which included a handwritten statement regarding this incident (Enc. 16a – 16e). § 87(2)(g)

On February 26, 2014, at approximately 2 p.m. § 87(2)(b) was driving his 2011 gold Lexus to his mother's home, located at § 87(2)(b), in Queens. His vehicle has tinted windows, which are very dark and he does not know whether they are legal. He also had an air freshener hanging from his rearview mirror. While parking in front of his mother's home, a dark grey Impala with four plainclothes male officers pulled up behind him. He observed their turret lights were on.

§ 87(2)(b) continued to park and in doing so, reversed the vehicle, stopped, reversed the vehicle again, and finished parking. He removed his seatbelt and gathered his keys and takeout food. He then exited his vehicle.

The officers exited their vehicle. PO Matthew Lewis was identified via investigation and described as a 5'9" tall, 230-pound (chubby) white man in his late 30s or early 40s with a crew cut so short that § 87(2)(b) could not tell what color his hair was. Det. Thomas Reo was identified via investigation and described as a 6'2" to 6'3" tall, 180 to 190 pound (slim) white man in his 30s with brown hair. PO Ryan Dunn was identified via investigation and described as a 6'3" to 6'4" tall, 230 to 240-pound (chubby) white man in his late 30s or early 40s with brown hair, glasses, and possibly a goatee. PO Derek Webber was identified via investigation and described as a 5'5" to 5'6" tall, 150 to 160-pound (athletic) olive-skinned man in his late 30s with black hair.

PO Lewis approached § 87(2)(b) at the driver's side of his vehicle and immediately began cursing at § 87(2)(b). He made statements to the effect of, "What the fuck are you doing? You almost fucking hit us. You didn't fucking see us there? You almost fucking backed into us. Get the fuck over here. Where the fuck do you think you're going? Why the fuck are you getting out of the car? Get the fuck back in the car." During his phone statement, § 87(2)(b) made similar discourteous language allegations, but upon filing this complaint, § 87(2)(b) only alleged that PO Lewis stated, "What the fuck? Why didn't you stop?" He did not make any discourteous language allegations in his Notice of Claim statement.

§ 87(2)(b) asked why he was being stopped. PO Lewis responded, "I ask the questions. Just shut the fuck up. Put your fucking hands up. Get your hands in the fucking air and turn the fuck around. Get the fuck up against the car."

§ 87(2)(b) refused to comply. PO Lewis grabbed § 87(2)(b)'s coat near his chest/upper left arm area in an attempt to turn him around. In response, § 87(2)(b) stiffened his body and shrugged his shoulder a few times, which made PO Lewis let him go. PO Lewis asked § 87(2)(b) "Do you want to go to fucking jail?" PO Lewis, or possibly another officer, stated something to the effect of, "Whoa, what the fuck? Calm down. Let's not make this into something." PO Dunn, PO Webber and Det. Reo may have used a variation of the word "fuck" approximately two times throughout the interaction, though was unable to recall any specific statements.

PO Lewis held onto § 87(2)(b)'s arms while asking him for his identification. § 87(2)(b) informed PO Lewis of which pocket his identification could be located in and PO Lewis reached in and removed the identification and loose dollar bills [The investigation determined that PO Webber, not PO Lewis, was the sole officer to frisk and search § 87(2)(b) therefore, the subject of this allegation will be referred to as PO Webber within the narrative]. PO Webber then frisked § 87(2)(b)'s pockets, but not the rest of his body. After the frisk, PO Webber reached into each of § 87(2)(b)'s pockets, including his front and rear pants pockets, his two front jacket pockets, and his interior left chest jacket pocket.

PO Lewis asked if there was anything in § 87(2)(b)'s car he should know about, and although § 87(2)(b) denied that there was, Det. Reo opened the front passenger door and began searching the interior of the vehicle [The investigation determined that PO Webber was the only officer to search the vehicle, therefore, the subject of this allegation will be referred to as PO Webber within the narrative]. He observed PO Webber search in the glove compartment and remove an envelope of papers § 87(2)(b) had stored inside. The papers documented existing claims § 87(2)(b) had filed against the police. § 87(2)(b) observed PO Webber read the letters. PO Webber also searched the center console, lifting the tray and searching the compartment under the tray, then removing candy, pens and other items. PO Webber also rifled through § 87(2)(b)'s trunk and the bags, boxes and items within the trunk.

PO Lewis handcuffed § 87(2)(b) and ordered him to the rear of the car. At the rear of the vehicle, PO Webber searched § 87(2)(b) incident to a lawful arrest.

An officer asked § 87(2)(b) about the prescription pills that were recovered from either his glove compartment or book bag in the trunk. The pills were a generic brand of either oxycodone or Percocet, which had been prescribed to him in 2009. The officers said they found them in the center console.

§ 87(2)(b)'s mother exited her home to observe this incident. The officers allowed her to take § 87(2)(b)'s car keys and money for safekeeping. § 87(2)(b) was arrested and transported to the 113th Precinct stationhouse. He was charged with § 87(2)(a) 160.50.

Attempts to Contact Civilians

§ 87(2)(b) requested that his unnamed § 87(2)(b)-old mother not be contacted as a witness in this complaint and refused to provide her contact information. He explained that observing the police interaction had upset her and negatively affected her health. Because she arrived during the later stages of the interaction, § 87(2)(b) believed she would have only seen the vehicle search.

NYPD Statements:

Subject Officer: PO MATTHEW LEWIS

- *PO Lewis was § 87(2)(b) old at the time of this incident. He is a § 87(2)(b) bald white man with brown eyes.*
- *On February 26, 2014, PO Lewis worked from 8 a.m. to 4 p.m. on a team composed of SET and anti-crime officers. He was working with PO Webber, Det. Reo and PO Dunn. All officers were in plainclothes and assigned to an unmarked vehicle, a black Impala #162.*

Memo Book

At 2:30 p.m., one male was placed under arrest for § 87(2)(a) 160.50. § 87(2)(b). Lexus § 87(2)(b). § 87(2)(b) resisted arrest and was very uncooperative. Oxy[codone] was recovered (Enc. 19a – 19b).

CCRB Statement

PO Lewis was interviewed at the CCRB on September 19, 2014 (Enc. 20a – 20f).

At the time of this incident, PO Lewis was operating the officers' vehicle with Det. Reo in the front seat and PO Webber and PO Dunn in the backseat when they observed § 87(2)(b) pull his vehicle in front of the officers', cutting them off. He then made a left turn and failed to signal.

PO Lewis activated the turret lights and sirens and § 87(2)(b) pulled over after approximately one minute, but instead of parking his vehicle, he reversed, then pulled it forward, then reversed again, coming within inches of the officers' vehicle and almost striking it. He kept turning around to look at the officers and looking around his car, but PO Lewis could not see his exact movements since he was inside of his vehicle. Based on these factors, PO Lewis determined § 87(2)(b) was stalling and moving furtively. § 87(2)(b) parked his vehicle and immediately jumped out. § 87(2)(b) began yelling, screaming and waving his hands.

PO Lewis, the first officer to speak to § 87(2)(b) stated, "What's the problem? Why you acting like that? You had to have known we were right behind you. Why did you keep backing up? It's not that serious, it's just a car stop." He may have ordered him back into the vehicle, he did not recall, but he did request his identification. He made all these statements in a normal conversational voice and was not yelling. § 87(2)(b) did not respond to PO Lewis and he did not recall whether he provided his identification. PO Lewis did not state, "What the fuck are you doing? You almost fucking hit us. You

didn't fucking see us there? You almost fucking backed into us. Get the fuck over here. Where the fuck do you think you're going? Why the fuck are you getting out of the car? Get the fuck back in the car."

§ 87(2)(b) began to ask questions, behave belligerently, and was uncooperative with the officers' attempts to conduct the investigation. PO Lewis did not state or hear another officer state, "I ask the questions. Just shut the fuck up. Put your fucking hands up. Get your hands in the fucking air and turn the fuck around."

§ 87(2)(b) was brought to the back of the vehicle where PO Dunn and PO Lewis took turns guarding him. Either PO Lewis or another officer obtained § 87(2)(b)'s identification, but PO Lewis believed that § 87(2)(b) handed it to them, and no officer reached into his pocket to retrieve it. PO Lewis never entered § 87(2)(b)'s pockets. PO Webber frisked § 87(2)(b)'s waistband. PO Lewis did not see PO Webber reach into § 87(2)(b)'s pockets. He was not handcuffed at the time. PO Lewis did not know PO Webber's reasoning for the frisk, but speculated it was because § 87(2)(b) did not pull over immediately, the back and forth movements he made with his vehicle, the furtive movements indicative of stalling, and jumping out of the vehicle aggressively.

PO Webber searched the vehicle. PO Lewis did not partake in the search or recall seeing PO Dunn and Det. Reo search the vehicle. PO Lewis observed PO Webber look around the front seats, but was uncertain of the specific areas searched, including whether the glove compartment, center console, trunk, or bags or containers in the trunk were searched. He did not see an officer opening envelopes and reading letters.

PO Webber informed PO Lewis that oxycodone was in plain view, which PO Lewis believed was the reason PO Webber searched the vehicle. PO Lewis saw the oxycodone later during the interaction, after it was removed from the vehicle. It appeared to be a couple of white pills in a plastic pill bottle. He did not recall whether there was a prescription label on it.

Officers began to handcuff § 87(2)(b). He was initially asked to turn around and refused, so PO Lewis and PO Webber grabbed his arms and turned him to face the vehicle. He never stated, "Get the fuck up against the car," nor did he hear another officer make this statement. § 87(2)(b) resisted by twisting his torso and shoulders away from the officers while verbally protesting his arrest. Officers handcuffed § 87(2)(b) without issue. They did not state, "Whoa, what the fuck. Calm down, let's not make this into something," or, "Do you want to go to fucking jail?" PO Lewis did not use profanity during the interaction or hear another officer do so.

Subject Officer: PO DEREK WEBBER

- PO Webber was § 87(2)(b) old at the time of this incident. He is a § 87(2)(b) white man with black hair and brown eyes.
- On February 26, 2014, PO Webber worked from 9:30 a.m. to 6:05 p.m. on an anti-crime team with PO Dunn, PO Lewis and Det. Reo. The officers were dressed in plainclothes and assigned to a black Chevy Impala, unmarked RMP 162.

Memo Book

At 2:30 p.m., officers stopped a car in front of § 87(2)(b) § 87(2)(b), § 87(2)(a) 160.50

§ 87(2)(b) was arrested by PO Dever. PO Webber resumed patrol at 3:18 p.m. (Enc. 17a – 17c).

CCRB Statement

PO Webber was interviewed at the CCRB on July 2, 2014 (Enc. 18a – 18e). § 87(2)(g)

After stopping § 87(2)(b) for a VTL infraction, § 87(2)(b) dipped his body downward prior to him or the officers exiting their vehicles. He turned his shoulders and head, then lifted his body above the seat

as he turned around. PO Webber determined that § 87(2)(b) was moving around a lot for a routine traffic stop and noted that when he dipped down, he could have placed something underneath the car's seat.

§ 87(2)(b) then jumped out of his vehicle and began yelling and cursing, "Why did you pull me over? I didn't fucking do anything." § 87(2)(b) repeatedly raised his arms above his head, to the point where, had the officers been closer, he would have struck them. No officer used the alleged profanity toward § 87(2)(b) at any time during this incident.

An officer asked § 87(2)(b) to place his hands on the hood of his car. § 87(2)(b) initially complied, but as the officers got closer, § 87(2)(b) kept pushing himself off of the car, flailing his arms around, turning his waist around and asking why he was stopped. He would calm down for a few seconds and then reinstitute his aggressive behavior. At this point, § 87(2)(b) was determined to be under arrest for § 87(2)(a) 160.50.

During his CCRB statement, PO Webber stated § 87(2)(b) was frisked right before he started pushing away from the vehicle, at a point during the incident he was not determined to be under arrest. He noted the frisk was a result of § 87(2)(b)'s furtive movements inside of the vehicle coupled with his aggressive behavior which led PO Webber to believe he may have a weapon. However, when PBA Representative Luis Albert suggested that PO Webber may have been unable to frisk § 87(2)(b) at this point, due to his aggressive behavior, PO Webber confirmed this was the case and he only intended to frisk him but was unable to do so. PO Webber then stated that he did not recall at what point § 87(2)(b) was frisked or which officer conducted the frisk. § 87(2)(b) was searched incident to a lawful arrest, but PO Webber could not recall whether he was searched beforehand.

The officers handcuffed § 87(2)(b) within seconds, despite his mild resistance. He was positioned at the rear of the vehicle. PO Webber initially stated that he observed a prescription pill bottle sans label inside of the center console, but redacted this statement and noted the pill bottle was actually in a cup holder to the side of the center console. He observed the pill bottle in plain view, and explained that having prescription pills without a prescription is illegal. He examined the pills and determined that they were oxycodone. PO Webber searched the lungeable and reachable areas of § 87(2)(b)'s car, described as under the seat where § 87(2)(b) had dipped down, the cup holders near the center console, the closed center console, and "basically anywhere where § 87(2)(b) could have easily placed a weapon." PO Webber did not recall searching the glove compartment, visors, trunk, or looking inside of envelopes. He did not believe that any other officer assisted in the search.

§ 87(2)(b) and his vehicle were transported to the 113th Precinct stationhouse [The investigation determined that § 87(2)(b)'s vehicle was not transported to the stationhouse or vouchered].

PO Webber provided PO Charles Dever with all information pertaining to § 87(2)(b)'s arrest, as PO Dever was assigned to be the arresting officer but was not present during the incident.

Subject Officer: DET. THOMAS REO

- *Det. Reo was § 87(2)(b) old at the time of this incident. He is a § 87(2)(b) white man with brown hair and brown eyes.*
- *On February 26, 2014, Det. Reo worked from 8 a.m. to 4:35 p.m. on an anti-crime team with PO Lewis, PO Webber and PO Dunn. The officers were dressed in plainclothes and assigned to an unmarked black Impala.*

Memo Book

Det. Reo had no memo book entries regarding this incident, despite his acknowledgement of having been present (Enc. 21a – 21b). At 8 a.m., he was present for duty and assigned to admin at the 113th Precinct stationhouse. At 4:35 p.m., Det. Reo ended his tour.

CCRB Statement

Det. Reo was interviewed at the CCRB on July 22, 2014 (Enc. 22a – 22e). § 87(2)(g)

Det. Reo was working at the stationhouse when the anti-crime team asked if he would patrol with them, to which he conceded.

After stopping § 87(2)(b)'s vehicle for a VTL violation, § 87(2)(b) reversed his vehicle toward the officers' and exhibited aggressive behavior when exiting the vehicle. Det. Reo did not mention furtive movements when specifically asked whether § 87(2)(b) made any other suspicious movements, aside from flailing his arms out of frustration at being stopped.

When questioned with the specific discourteous statements alleged by § 87(2)(b) Det. Reo denied that any officer used profanity toward § 87(2)(b). Det. Reo did not see an officer frisk or search § 87(2)(b) and he did not do so himself. While speaking to § 87(2)(b) at the rear of the vehicle, PO Webber approached from behind and began handcuffing § 87(2)(b). Prior to this, the officers had not discussed placing § 87(2)(b) under arrest. There was "a brief struggle" because § 87(2)(b) would not voluntarily put his hands behind his back. PO Webber later informed Det. Reo that he had observed a "quantity of narcotics in the center console." Det. Reo did not enter or search § 87(2)(b)'s car and he did not see any other officer do so. He did not open envelopes inside of § 87(2)(b)'s vehicle.

Subject Officer: PO RYAN DUNN

- PO Dunn was § 87(2)(b) old at the time of this incident. He is a § 87(2)(b) white man with green eyes and black hair/bald.
- On February 26, 2014, PO Dunn worked from 9:30 a.m. to 6:05 p.m. on an anti-crime team with PO Webber, PO Lewis and Det. Reo. He was dressed in plainclothes and assigned to an unmarked vehicle.

Memo Book

At 2:20 p.m., one individual was placed under arrest at § 87(2)(b) by PO Dever. PO Webber, Reo, and Lewis were on scene. The individual was pulled over for § 87(2)(a) 160.50. He got out of the vehicle and was very hostile. He was also arrested for § 87(2)(a) 160.50 (Enc. 23a – 23b).

CCRB Statement

PO Dunn was interviewed at the CCRB on September 5, 2014 (Enc. 24a – 24e). His statement was consistent with that of Det. Reo's, unless otherwise noted.

PO Dunn corroborated the reason for the stop, and that § 87(2)(b) took a notable amount of time to pull over, but did not reference furtive movements. This was the first date PO Dunn worked with Det. Reo.

PO Lewis was the first officer to speak to § 87(2)(b) but he did not recall what was said. When presented with the alleged discourteous statements, PO Dunn denied making the statements or hearing another officer make the statements. No officer used profanity toward § 87(2)(b). § 87(2)(b) was positioned at the back of the vehicle and PO Dunn guarded him. PO Dunn did not see an officer frisk or search § 87(2)(b) prior to placing him under arrest.

PO Webber searched the passenger side of the vehicle. PO Dunn did not participate in the search of the vehicle, and did not see any other officer search the vehicle. He was unaware of the circumstances that led to the vehicle search and did not know where the narcotics were recovered from. He did not see officers search the glove compartment, center console, trunk or open envelopes and read the interior letters.

PO Dunn did not know at what point § 87(2)(b) was determined to be under arrest, and whether it was prior to the recovery of narcotics or as a result of. He did not know what narcotic was recovered and never observed the contraband.

NYPD Documents

Arrest Report

§ 87(2)(b), § 87(2)(a) 160.50

Criminal Court Complaint

§ 87(2)(b), § 87(2)(a) 160.50

Property Voucher

§ 87(2)(b) s prescription bottle containing three oxycodone pills was vouchered as arrest evidence by PO Dever under invoice number § 87(2)(b) (Enc. 27a). The evidence was listed as being recovered by PO Webber. The voucher does not specify whether the pill bottle was furnished with a label or where in the vehicle the evidence was recovered from.

Roll Call

Det. Reo is listed as working in vehicle #286, on an anti-crime team with PO Michael Carleo, PO Robert Deferrari, PO Dunn and PO Lewis. PO Webber is listed as working on an anti-crime team without a vehicle assignment or any listed partners. PO Dever is listed as working on a conditions team with PO Jose Sureil and PO Daniel Pelan (Enc. 29a – 29k).

Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) filed a Notice of Claim with the City of New York on § 87(2)(b), claiming illegal search and seizure, racial profiling, and unlawful arrest. He is seeking \$100,000 as redress (Enc. 16a – 16e).

Civilian Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- § 87(2)(b) has six prior CCRB complaints § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Subject Officers CCRB History

- PO Webber has been a member of the service for four years and there are no substantiated CCRB allegations against him (Enc. 6a).
- Det. Reo has been a member of the service for six years and there is one substantiated CCRB allegation against him (Enc. 7a – 7c):
 - In CCRB case number 201401876, the CCRB panel substantiated a stop allegation against Det. Reo and recommended Charges. The NYPD has yet to reach a disposition.
- PO Lewis has been a member of the service for eight years and there are four substantiated CCRB allegations against him (Enc. 8a – 8c):
 - In CCRB case number 201202903, the CCRB panel substantiated vehicle stop, vehicle search, frisk of a person and search of a person allegations against PO Lewis and recommended Charges. The NYPD has yet to reach a disposition.

Conclusion

Identification of Subject Officers

PO Webber, PO Lewis, PO Dunn and Det. Reo acknowledged being the only officers present during this incident.

§ 87(2)(b) accurately described PO Lewis and attributed all profanities to him. PO Lewis corroborated a portion of the statements made, sans profanity. § 87(2)(g)

Although § 87(2)(b) alleged that PO Lewis searched and frisked him, PO Lewis denied doing so and identified PO Webber as the officer who frisked § 87(2)(b). During his CCRB statement, PO Webber stated that he frisked § 87(2)(b) then changed his statement and said that he tried to frisk § 87(2)(b) but was unable to do so, then searched him incident to a lawful arrest. § 87(2)(g)

Although § 87(2)(b) attributed the vehicle search to Det. Reo, PO Webber stated that he alone searched § 87(2)(b)'s vehicle, which PO Dunn and PO Lewis corroborated. § 87(2)(g)

Allegations Not Pleaded

- § 87(2)(g)
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§ 87(2)(g)
§ 87(2)(g)

Investigative Findings and Recommendations

Allegation A: Abuse of Authority: PO Matthew Lewis spoke discourteously to § 87(2)(b)

During the interaction, § 87(2)(b) alleged that PO Lewis used the expletive “fuck” toward him numerous times. During his phone statement, § 87(2)(b) made similar discourteous language allegations, but upon filing this complaint, § 87(2)(b) alleged that PO Lewis used the expletive “fuck” one time. He did not make any discourteous language allegations in his Notice of Claim statement.

PO #####, PO Webber and Det. Reo denied hearing PO Lewis use any discourteous language. PO Lewis confirmed that he made similar statements as those alleged by § 87(2)(b) absent profanity. However, PO Lewis denied using profanity toward § 87(2)(b)

§ 87(2)(g) It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B: Abuse of Authority: PO Derek Webber searched § 87(2)(b)

§ 87(2)(b) alleged that an officer, who was identified via investigation as PO Webber, reached into his pocket to retrieve his identification. After being frisked, he alleged his pants and jacket pockets were searched. Following his arrest, PO Webber searched him incident to a lawful arrest. PO Webber confirmed that he searched § 87(2)(b) incident to a lawful arrest, but did not recall searching him prior. PO Lewis, Det. Reo and PO Dunn did not search § 87(2)(b) at any point or observe PO Webber do so.

§ 87(2)(g) It is therefore recommended that **Allegation B** be closed as **unsubstantiated**.

Allegation C: Abuse of Authority: PO Derek Webber frisked § 87(2)(b)

§ 87(2)(b) alleged that, prior to being placed under arrest, an officer, who was identified via investigation as PO Webber, frisked § 87(2)(b)'s pockets, but not the rest of his body. Upon being stopped, § 87(2)(b) moved his vehicle back and forth to park, removed his seat belt, collected his keys and takeout food, but did not make additional suspicious movements prior to exiting his vehicle.

PO Webber initially noted that he frisked § 87(2)(b) prior to his arrest, as a result of his furtive movements (described as dipping his body downward, turning his shoulders and head and hoisting his body above the seat) and his aggressive behavior (yelling, cursing, and raising his arms above his head). Then, when challenged by his PBA Representative, PO Webber redacted his statement and said that he tried to frisk § 87(2)(b) as he was pushing away from the vehicle, prior to him being considered under arrest, but due to his combative behavior, he was unable to do so until § 87(2)(b) was placed in handcuffs later during the incident.

PO Lewis, who did not frisk § 87(2)(b) attributed the frisk to § 87(2)(b)'s furtive movements (failing to pull over, the back and forth movements § 87(2)(b) performed with his vehicle, looking back at the officers, looking around his vehicle, and jumping out of the vehicle aggressively). Det. Reo and PO § 87(2)(b) did not see an officer frisk § 87(2)(b) and did not report observing furtive movements.

§ 87(2)(g) To frisk an individual for safety purposes, an officer must reasonably believe the individual is dangerous by virtue of being armed. *People v. De Bour*, 40 N.Y.2d 210 (1976) (Enc. 1a – 1k). An officer may reasonably believe an individual is armed after observing physical movements from inside of a vehicle that are indicative of concealing a weapon. *People v. Crespo*, 292 A.D.2d 177 (1st Dept. - 2002) (Enc. 2a). However, *De Bour* further notes that behaviors susceptible to innocuous interpretations will not heighten or generate reasonable suspicion (Enc. 1a – 1k).

Although PO Webber and PO Lewis both noted that § 87(2)(b) was moving furtively, they were vastly inconsistent with their descriptions of the movements and two of the four officers in the vehicle, Det. Reo and PO Dunn, did not report observing furtive movements of any kind. PO Lewis' account of § 87(2)(b) turning around in his seat and looking at the officers was likely accurate, given that § 87(2)(b) was driving his vehicle in reverse. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that Allegation C be closed as substantiated.

Allegation D: Abuse of Authority: PO Derek Webber searched the car in which § 87(2)(b) was an occupant.

It is undisputed that § 87(2)(b)'s vehicle was searched. § 87(2)(b) alleged that an officer, who was identified via investigation as PO Webber, searched the area by his front passenger door, glove compartment, envelopes inside of the glove compartment, center console, the trunk and enclosed bags and boxes inside of the trunk. An expired prescription of oxycodone was recovered, and § 87(2)(b) believed he was placed under arrest as a result of the search, not prior.

PO Webber provided two justifications for the vehicle search: a pill bottle in plain view and § 87(2)(b)'s furtive movements. He observed a prescription pill bottle, without a label, in plain view in the cup holder in front of § 87(2)(b)'s center console, prompting him to search the area around the driver's seat, the cup holders in front of the center console and the closed center console. He did not search the glove compartment or trunk. Secondly, PO Webber observed § 87(2)(b) make furtive movements prior to exiting the vehicle, which Det. Reo and PO Dunn did not see and which were inconsistent with PO Lewis' description of the furtive movements, as previously described.

PO Dunn observed PO Webber searching the front passenger seat. PO Lewis and Det. Reo did not see the specific areas PO Webber searched or the recovery of the prescription pills, but Det. Reo was later informed by PO Webber that he had recovered the pills from inside of the center console.

§ 87(2)(g) PO Webber initially noted that the pill bottle was recovered from the center console, but then redacted this statement and said the pill bottle was in plain view, to the side of the center console. § 87(2)(a) 160.50

§ 87(2)(g) which PO Webber noted was closed at the time of the stop. Furthermore, Det. Reo stated that PO Webber recovered "a quantity of narcotics in the center console." § 87(2)(g)

In the interest of safety, officers may conduct a limited protective search of an area within the vehicle that corresponds to the direction or location in which the furtive movements were directed toward. *People v. Carvey*, 89 N.Y.2d 707 (1997) (Enc. 3a – 3d). While limited searches are justified under some circumstances, officers are not justified in conducting the safety searches when the threat has ceased, for instance, if the individual has been removed from the vehicle. *People v. Torres*, 74 N.Y.2d 224 (1989) (Enc. 4a – 4h).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Finally, § 87(2)(b) exited the vehicle immediately upon approach, was frisked shortly thereafter at which point officers did not recover a weapon, and was then positioned at the rear of his vehicle where he was guarded by at least two officers. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **substantiated**.

§ 87(4-b) § 87(2)(g)

Team: 2

Investigator:	<u>Diana P. Murray</u>	
Signature	Print	Date

Supervisor:		
Title/Signature	Print	Date

Reviewer:		
Title/Signature	Print	Date

Reviewer:		
Title/Signature	Print	Date